

Defendant's counsel is ordered to prepare a proposed order conforming to the tentative ruling, attaching the tentative ruling, no later than five (5) days from the date of this hearing.

7. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

***HEARING ON MOTION IN RE: FOR LEAVE TO AMEND SECOND AMENDED COMPLAINT TO FILE**

THIRD AMENDED COMPLAINT

FILED BY: COLEMAN, KAREN

TENTATIVE RULING:

Plaintiff Karen Coleman's Motion for Leave to File a Third Amended Complaint is **denied**. The Court sustained Defendant's Demurrer and granted Defendant's Motion to Strike the Second Amended Complaint on January 23, 2026. Plaintiff in *propria persona* filed a self-styled "Notice of Timely Filing Third Amended Complaint on February 2, 2026", which is late. Cal. Code of Civ. Proc. § 1005(b) requires service of this Motion no later than 16 court days before the hearing. Sixteen court days before February 18, 2026 is January 23, 2026. Plaintiff's filing is 10 days late.

Furthermore, Plaintiff's Motion contains several procedural irregularities. For example, Plaintiff's motion fails to comply with the Notice Requirements, did not to seek leave to amend her complaint, and fails to provide a Memorandum of Points and Authorities. Plaintiff did not file a Proof of Service form indicating that Defendants have been served. Plaintiff also does not include a proposed Copy of a Third Amended Complaint. These procedural irregularities do not provide Defendants with due process, in that there is no record that they are provided with timely notice an opportunity to be heard. As such, this Motion fails.

The Court has admonished Plaintiff that she is required to follow Court Rules and the Rules of Civil Procedure, even though she represents herself. The Court has also advised Plaintiff to seek assistance of Counsel or the resources of the law library so that she could properly prepare and serve motions in according to the rules. She has not complied with these admonitions. Unfortunately, the Court must **deny** the relief she requested by this Motion. Plaintiff's Motion is **denied**.

8. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT FILED BY DEFENDANT

UNIVERSAL PROTECTION SERVICE, LP

FILED BY: UNIVERSAL PROTECTION SERVICE, LP

TENTATIVE RULING:

Before the Court is Defendant Universal Protection Service, LP's Demurrer to Plaintiffs' First Amended Complaint. Universal Protection Service, LP is doing business as Allied Universal Security Services.

Defendant Universal Protection Service, LP's Demurrer **sustained without leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of